



INDIAN LAW & DEALMAKING · 14 SEPTEMBER 2026

Five moves shaping the board now.

- › NCLT Mumbai clears Gstaad Hotels plan
- › Indiabulls strikes fintech control deal
- › NCLAT extends clean slate in liquidation
- › NCLAT enforces guarantor forum rules
- › NCLT Ahmedabad admits Mercury Trade Links CIRP

SWIPE →



NCLT MUMBAI · CORPORATE LAW

01 / 05

NCLT Mumbai approves Gstaad Hotels IBC plan

NCLT Mumbai approved Shree Naman Developers Pvt. Ltd.'s ₹1,611 crore resolution plan for Gstaad Hotels Pvt. Ltd. on 12 September 2026, rejecting objections. The target owns the JW Marriott Bengaluru property.

THE READ

This clears a high-value stressed-hospitality asset rather than a routine procedural filing. Buyers gain renewed certainty on complex luxury asset resolutions.



Indiabulls acquires control of Fintech Cloud

Indiabulls signed a definitive agreement on 11 September 2026 to acquire a 70% stake in Fintech Cloud Pvt. Ltd. for ₹1,050 crore, valuing the target at ₹1,500 crore. The consideration involves issuing up to 21 crore equity shares with majority board rights.

THE READ

This signals a strategic shift by Indiabulls into loan-origination and underwriting technology. The structure banks heavily on regulatory clearance via an NCLT-approved scheme.



NCLAT DELHI · INSOLVENCY

03 / 05

NCLAT extends Section 32A protection to liquidations

NCLAT Delhi held on 9 September 2026 in Amitkumar Rishi Kumar Bhabhda v. Amit Chandrashekhar Poddar that Section 32A clean slate immunity applies to going-concern purchasers in liquidation. The ruling insulates buyers from legacy offences.

THE READ

This significantly strengthens bidding certainty for distressed assets sold as going concerns. Liquidation buyers can now price legacy criminal exposure with greater confidence.



NCLAT DELHI · PERSONAL GUARANTORS

04 / 05

NCLAT halts wrong-bench guarantor insolvency

NCLAT quashed personal-guarantor insolvency proceedings in Kamlesh Rani Singla v. Praveen Kumar Garg on 14 September 2026. It held that Section 60(2) mandates filing before the same bench handling the corporate debtor CIRP.

THE READ

This enforces strict forum discipline and stops fragmented guarantor litigation. Creditors must align personal insolvency filings directly with active corporate proceedings.



NCLT AHMEDABAD · OPERATIONAL CREDITOR

05 / 05

NCLT Ahmedabad admits Mercury Trade Links CIRP

NCLT Ahmedabad admitted Fettech Commercial Enterprises Pvt. Ltd.'s petition against Mercury Trade Links Ltd. on 1 September 2026 for an operational debt of ₹2.70 crore. The bench found an established default and no genuine pre-existing dispute.

THE READ

This triggers immediate management displacement and moratorium protection for the target. Operational creditors gain a clear precedent for enforcing uncontested trade debts.



THE THROUGH-LINE

Recent rulings cement strict procedural discipline across corporate benches while opening practical pathways for asset resolution. From NCLAT enforcing clean-slate protections in liquidation to precise forum rules for guarantors, regulatory predictability is improving. Dealmakers must align transactional structures tightly with these evolving jurisdictional boundaries.





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